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Provision of February 27, 2025
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No. 92 of February 27, 2025

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003, containing
"Code regarding the protection of personal data,
containing provisions for the adaptation
of the national legal system to Regulation (EU)
2016/679 of the European Parliament and of the Council, of
April 27, 2016, concerning the protection of
natural persons with regard to the processing of personal data,
as well as the free movement of such data and repealing Directive 95/46/EC (hereinafter
"Code");

HAVING REGARD to Regulation No. 1/2019 concerning
internal procedures with external relevance,
aimed at carrying out the tasks and
exercising the powers entrusted to the Guarantor for the
protection of personal data, approved by
resolution No. 98 of April 4, 2019, published in
G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc.
web n. 9107633 (hereinafter "Guarantor Regulation
No. 1/2019");

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations made by the Secretary
General pursuant to Article 15 of the Guarantor's
Regulation No. 1/2000 on the organization and
functioning of the office of the Guarantor for the
protection of personal data, doc. web n. 1098801;

Reporting Attorney Guido Scorza;

PREMISE

1. Introduction.

With a complaint submitted pursuant to Article 77 of
Regulation XX and XX, employees of the
Experimental Zooprophyllactic Institute of Lazio and
Tuscany "M. Aleandri" (hereinafter "Institute") have
represented, through their lawyer, that they have
been suspended from work, following the failure

to comply with the obligation of anti-SARS CoV 2 vaccination required as a condition for the exercise of health professions during the emergency period, "with resolutions of the Entity [...] adopted "ad personam" or one for each suspended health worker [...] reporting exclusively the [their] initials." Acknowledging the continued non-compliance with the obligation by the interested parties, with a single resolution (No. XX of XX), specifying the names of each, the Institute confirmed the suspension from service of the complainants and another employee for failure to vaccinate and sent this resolution to each of them.

2. The investigative activity.

In response to a request for information from the Authority (see note of XX, prot. n. XX) the Institute, with note of XX (prot. n. XX) has declared, in particular, that:
"the Institute has implemented the provisions contained within DL No. 44/21 converted into L. 76/21, resolving the suspension of the interested parties (D. nn. 363/21 and 364/21), registered respectively in the register of Biomedical Laboratory Health Technicians and in that of veterinary doctors [...], given the non-compliance with the obligation of anti-SARS CoV 2 vaccination required for those exercising health professions";

"the content of the aforementioned deliberative acts has never been visible online on the institutional website";

"regarding the disclosure of the personal data of the complainants [...] the status of a suspended Veterinary Doctor or Biomedical Laboratory Health Technician from a professional register can be known by the general public simply by accessing the respective websites of the professional orders and consulting, without the need to register or log in, the lists of registered members."

With note of XX (prot. n. XX), the Office, based on the elements acquired, the checks carried out, and the facts emerged following the investigative activity, notified the Institute, pursuant to Article 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation for having communicated to certain employees a single resolution containing the personal data of each of them in relation to the failure to vaccinate and the consequent suspension from service of the same, in violation of Articles 5, 6 of the Regulation, as well as Article 2-ter of the Code.

With the same note, the aforementioned holder was

invited to submit to the Guarantor written defenses or documents or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981).

With note of XX (prot. n. XX) the Institute, which did not request to be heard, submitted a defensive memorandum, stating, in particular, that:

“it is highlighted [...] that the content of the aforementioned deliberative acts has never been visible online on the institutional website: therefore, if anything, the issues arise only for communications within the structure”;

“regarding the identifiability through initials of the names, it is noted that the requirements have been respected.

****Data Minimization Regulations.**** [...] In the case at hand, apart from the initials, there are no other elements to allow for the identification of the individuals. Therefore, there is no possibility of tracing the identity of the concerned persons.

“The writing institution, on one hand, had to enforce the regulations by communicating that those who had not complied with the vaccination obligation had been suspended.”;

“The suspended status of a Veterinarian or a Biomedical Laboratory Technician from a professional register can be known by the general public simply by accessing the respective websites of the professional orders and consulting, without the need to register or log in, the lists of registered members”;

“there was certainly no intent or premeditation; we only sought to comply with a regulation that was new for everyone.”

****3. Outcome of the Investigative Activity.****

****3.1** The processing of personal data related to the absence of the vaccination requirement and the suspension from service of employees.

The personal data protection regulations provide that public entities, within the work context, may process personal data of the interested parties, including data related to special categories, if the processing is necessary, in general, for the management of the employment relationship and to fulfill specific obligations or tasks provided by law or by Union or Member State law (Articles 6, paragraph 1, letter c), 9, paragraph 2, letter b) and 4, and 88 of the Regulation). The processing is also lawful when it is “necessary for the performance of a task carried out in the public interest or in connection with the exercise of public powers vested in the data controller” (Article 6, paragraphs 1, letter e), 2 and 3, and Article 9, paragraph 2, letter g), of the Regulation; Article 2-ter of the Code and Article 2-sexies, paragraph 1, of the Code).

Such processing must, however, be grounded in Union or Member State law, which must pursue a public interest objective and be proportionate to the pursuit of the same. The purpose of the processing must be necessary for the execution of a task carried out in the public interest or in connection with the exercise of public powers vested in the data controller (cf. Article 6, paragraph 3, of the Regulation and Article 2-ter of the Code). The employer, as the data controller, is, in any case, required to comply with the general principles regarding personal data protection (Article 5 of the Regulation) and must process the data through “authorized” and “trained” personnel regarding access and processing of the data (Articles 4, point 10), 29, and 32, paragraph 4, of the Regulation).

As known since 2007, the Authority has clarified that, within the employment relationship, personal data of employees cannot, as a rule, be disclosed to parties other than those who are part of the specific employment relationship, taking into account the definitions of “personal data” and “data subject” contained in Article 4, paragraph 1, number 1, of the Regulation (cf. points 2, 4, 5.1, and 5.3 of the “Guidelines on the processing of personal data of workers for the purpose of managing the employment relationship in the public sector,” of June 14, 2007, published in G.U. July 13, 2007, no.

161, and on www.garanteprivacy.it, web doc no. 1417809).

The administration, as the employer, must, in any case, adopt technical and organizational measures to prevent the unjustified knowledge of personal data of its employees by other colleagues or third parties, in order to avoid the undue circulation of personal information - in this case concerning particularly sensitive information such as the vaccination status of the worker and the consequent suspension from service due to non-vaccination - not only externally but also within the work contexts by unauthorized subjects. This is because making data available to subjects who, although part of the data controller's organization, cannot be considered "authorized" to process (cf. Articles 4, number 10, 28, paragraph 3, letter b), 29, and 32, paragraph 4, of the Regulation, as well as Article 2-quaterdecies of the Code), due to the role they perform and the functions exercised within said organization, may lead to a communication of personal data in the absence of a legal basis (cf., among many, most recently, provision no. 606 of September 26, 2024, web doc 10068155; but see also provision no. 223 of June 1, 2023, web doc 9916798, provision no. 322 of September 16, 2021, web doc no. 9711517, and the measures cited therein).

Regarding the case at hand, it is necessary to take into account, in general, the particular context that frames the facts in question following the provision of anti-SARS CoV 2 vaccination as an "essential requirement for the exercise of the profession and for the performance of work activities," which was initially provided for healthcare professionals and health-related operators by virtue of Article 4 of Decree-Law No. 44 of April 1, 2021 (converted into Law No. 76 of May 28, 2021 - Urgent measures for the containment of the COVID-19 epidemic, regarding anti-SARS-CoV-2 vaccinations, justice, and public competitions) in order to protect public health and maintain adequate safety conditions at work and in the provision of care and assistance services.

The aforementioned regulations - currently no longer in force due to subsequent legislative interventions (see most recently, Decree-Law No. 162 of October 31, 2022) - constituted, from the perspective of data protection, the scope of processing permitted, respectively, to employers and others.

****Institutional Subjects Involved, as well as the Legal Basis in accordance with the Regulation****

Establishing, in particular, that the communication of the suspension from service of the worker, in the event of failure to undergo vaccination, was to be made exclusively to the interested party (cf. art. 4 of Decree-Law 44 of 2021). The legislator had, therefore, introduced a complex verification system of the professional requirement for such categories of workers, which involved various institutional subjects, and provided for data flows between them, as well as the consequences, including in terms of suspension from the exercise of the profession and from any employment relationship, for the worker lacking the aforementioned requirement. Therefore, all processing of personal data necessary for the verification of the aforementioned professional requirement, including the communication of the suspension from work to be made exclusively to the interested party, had to be carried out in strict compliance with the limits and conditions provided by such legislative framework which constituted its legal basis and uniformly delineated at the national level the scope of processing permitted to each of the aforementioned subjects, as highlighted in numerous measures by the Authority during the emergency period and, in particular, in the opinions issued on the subsequent implementing provisions.

In this context, following the communication to the interested party of the suspension resulting from the verification act of the competent Health Authority, it was exclusively the responsibility of the professional orders to record the annotation in the professional register (see already the interpretative note of the Ministry of Health of September 22, 2021, prot. n. 47627), without indication of the reason for the suspension, as expressly provided by the implementing regulations of the aforementioned provisions on which the Authority also expressed its opinion (see provision of December 13, 2021, n. 430, web doc n. 9727220; art. 1, paragraph 1, letter l), of the D.P.C.M. of December 17, 2021, which introduced art. 17-quinquies, paragraph 5, of the D.P.C.M. of June 17, 2021). Therefore, it cannot be considered relevant, for the purposes of evaluating the overall conduct of the employer consisting of the circulation of information in the workplace, what was stated by the Institute regarding the fact that,

in any case, “the status of suspension of a Veterinarian or a Biomedical Laboratory Technician from a professional register can be known by the general public simply by accessing the respective websites of the professional orders.”

In light of the above considerations, it is highlighted that the provision, or in any case the sharing, with other personnel of information relating to the vaccination status and any suspension from service of employees, does not comply with the sector regulations in force at the time nor with those concerning the protection of personal data, even if the interested parties were only indirectly identifiable, for example through the initials of their first and last names, given the definition of personal data (“any information relating to an identified or identifiable natural person (‘data subject’)” (art. 4, paragraph 1, n. 1 of the Regulation) and considering the particular sensitivity of such information shared in a restricted and specific work context. In particular, it appears that resolution n. XX of XX confirming the suspension from service of the three affected workers due to the verified lack of the professional requirement of anti-SARS CoV 2 vaccination, and containing their names, was notified simultaneously to each of them, making them mutually aware of particularly sensitive personal information (such as the lack of vaccination and the consequent suspension from service). This resulted in the aforementioned information being made known to subjects who were not mutually authorized to process it, leading to a communication of personal data in violation of articles 5 and 6 of the Regulation, as well as 2-ter of the Code.

****4. Conclusions.****

In light of the evaluations mentioned above, it is noted that the statements made by the data controller during the investigation – the truthfulness of which may be subject to accountability under art. 168 of the Code – although deserving of consideration, do not allow for overcoming the objections notified by the Office with the initiation of the procedure and are insufficient to allow for the archiving of the present procedure, as none of the cases provided for by art. 11 of the Regulation of the Authority n. 1/2019 apply. Therefore, the preliminary evaluations of the Office are confirmed, and the unlawfulness of the processing of personal data carried out by the Institute is noted for having implemented a processing of personal data relating to the vaccination status of employees, in the absence of a legal basis, in violation of articles 5, 6 of the Regulation, as well as 2-ter of the Code.

Considering that the violation of the aforementioned provisions occurred as a result of a single conduct (same processing or related treatments), art. 83, paragraph 3, of the Regulation applies, according to which the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation. Given that, in this case, the most serious violations, relating to articles 5, 6 of the Regulation, as well as 2-ter of the Code, are subject to the sanction provided for by art. 83, paragraph 5, of the Regulation, as recalled also by art. 166, paragraph 2, of the Code, the total amount of the sanction is to be quantified up to €20,000,000.

In this context, considering, in any case, that the conduct has exhausted its effects, the prerequisites for the adoption of further corrective measures referred to in Article 58, paragraph 2, of the Regulation do not exist.

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i and 83 of the Regulation; Article 166, paragraph 7, of the Code).

The Authority, pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation as well as Article 166 of the Code, has the power to “impose an administrative pecuniary sanction pursuant to Article 83, in addition to the [other] [corrective] measures referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case” and, in this context, “the Board [of the Authority] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Authority’s website pursuant to Article 166, paragraph 7, of the Code” (Article 16, paragraph 1, of the Regulation of the Authority No. 1/2019).

In this regard, taking into account Article 83, paragraph 3, of the Regulation, in the specific case, the

violation of the aforementioned provisions is subject to the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation.

The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by Article 83, paragraph 2, of the Regulation.

Considering that:

- with specific regard to the nature, severity, and duration of the violation, it should be noted that the processing occurred in relation to the personal data of three workers, determining the mutual knowledge of the lack of the vaccination requirement and the consequent suspension from work (Article 83, paragraph 2, letter a), of the Regulation);
- with specific regard to the subjective profile, the violation was committed under the erroneous belief of fulfilling an obligation arising from emergency legislation (Article 83, paragraph 2, letter b), of the Regulation);
- the processing involved very sensitive data, such as non-vaccination and suspension from service (cf. Article 83, paragraph 2, letter g), of the Regulation),

it is believed that, in this specific case, the level of severity of the violation committed by the data controller is medium (cf. European Data Protection Board, "Guidelines 4/2022 on the calculation of administrative pecuniary sanctions pursuant to the GDPR" of May 24, 2023, point 60).

That said, it is believed that, for the purposes of quantifying the sanction, the following circumstances should be taken into consideration:

- the Institute has offered good cooperation with the Authority during the investigation (Article 83, paragraph 2, letter f), of the Regulation);
- there are no previous relevant violations committed by the Institute (Article 83, paragraph 2, letter e), of the Regulation);
- the violation occurred during a period characterized by numerous organizational difficulties related to the issues of the emergency period characterized by the spread of the SARS CoV 2 virus (Article 83, paragraph 2, letter k), of the Regulation).

By reason of the aforementioned elements, evaluated in their entirety, it is deemed appropriate to determine the amount of the pecuniary sanction at the sum of €5,000 (five thousand) for the violation of Articles 5, 6 of the Regulation, as well as Article 2-ter of the Code, as an administrative pecuniary sanction deemed, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and dissuasive.

It is also believed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Regulation of the Authority No. 1/2019, the publication of this section containing the injunction order on the Authority's website should proceed. This is in consideration of the sensitivity of the information subject to processing concerning non-vaccination and the consequent suspension from service of certain workers.

Finally, it is noted that the prerequisites referred to in Article 17 of Regulation No. 1/2019 exist.

ALL OF THE ABOVE CONSIDERED, THE AUTHORITY

declares, pursuant to Article 57, paragraph 1, letter f), of the Regulation, the unlawfulness of the processing carried out by the Experimental Zooprophyllactic Institute of Lazio and Tuscany "M. Aleandri" for violation of Articles 5, 6 of the Regulation, as well as Article 2-ter of the Code, in the terms stated in the motivation;

ORDERS

The Experimental Zooprophyllactic Institute of Lazio and Tuscany "M. Aleandri", represented by the legal representative pro tempore, with registered office at Via Appia Nuova 1411-00178 Rome, Tax Code 00422420588, to pay the sum of €5,000 (five thousand) as an administrative pecuniary sanction for the violations indicated in the motivation. It is represented that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an

amount equal to half of the imposed sanction;

ENJOINS

The aforementioned Institute, in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €5,000 (five thousand) according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981;

DISPOSES

- pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Regulation of the Guarantor No. 1/2019, the publication of the injunction order on the Guarantor's website;
- pursuant to Article 154-bis, paragraph 3 of the Code and Article 37 of the Regulation of the Guarantor No. 1/2019, the publication of this provision on the website of the Authority;
- pursuant to Article 17 of the Regulation of the Guarantor No. 1/2019, the annotation of violations and measures adopted in accordance with Article 58, paragraph 2 of the Regulation, in the internal register of the Authority provided for by Article 57, paragraph 1, letter u) of the Regulation.

Pursuant to Articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree No. 150/2011, an appeal against this provision may be filed before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, February 27, 2025

THE PRESIDENT

Stanzione

THE REPORTER

Scorza

THE SECRETARY GENERAL

Mattei